

complaint

Mr and Mrs H are unhappy about UK Insurance Limited's (UKI) decision not to deal with a claim under their buildings insurance policy for damage to their roof. Mr and Mrs H said that the roof damage had been caused by either vandalism or planes flying overhead.

our initial conclusions

Our adjudicator did not uphold the complaint. She felt there was no evidence to show that either vandalism or planes flying overhead had caused the roof damage. Therefore, she felt that UKI had not acted unreasonably in declining the claim. This complaint follows a second claim made by Mr and Mrs H in relation to the roof damage, originally he had claimed for storm. In this case, I am dealing only with the potential impact damage by vandalism or planes flying overhead.

my final decision

To decide what is fair and reasonable in this complaint, I have considered everything that Mr and Mrs H and UK Insurance have provided.

Mr and Mrs H have said recently "*something or someone caused the damage*" but apart from Mr H's opinions no evidence has been provided. It is clear that originally loss adjusters did issue a report stating there had been no "*one off single event*" that had caused the damage. The report also highlighted the roof had some "*pre-existing issues*" and the report said Mr H had pointed out "*pre-existing chimney damage*" as well as "*battens to the front elevation are rotten*".

The adjuster suggests that some of the report comments noted above came from Mr H. I can only comment on the overall content which clearly highlights that there was no valid claim under the policy as no damage linked to any event covered under the policy had been shown. I find that UKI did not act unreasonably based on the details I have seen.

I do not uphold this complaint and make no award against UK Insurance Limited.

The ombudsman may complete this section where appropriate – adding comments or further explanations of particular relevance to the case.

Under the rules of the Financial Ombudsman Service, I am required to ask Mr and Mrs H either to accept or reject my decision before 19 January 2015.

John Quinlan

ombudsman at the Financial Ombudsman Service

ombudsman notes

It is clear from the correspondence on the file that Mr and Mrs H are very unhappy about their claim being turned down on two separate occasions. However, this service can only decide based upon the evidence we have been provided with. Mr and Mrs H have provided no evidence of any vandalism or objects from any plane that may have impacted on their roof.

what is a final decision?

- A final decision by an ombudsman is our last word on a complaint. We send the final decision at the same time to both sides – the consumer and the financial business.
- Our complaints process involves various stages. It gives both parties to the complaint the opportunity to tell us their side of the story, provide further information, and disagree with our earlier findings – before the ombudsman reviews the case and makes a final decision.
- A final decision is the end of our complaints process. This means the ombudsman will not be able to deal with any further correspondence about the merits of the complaint.

what happens next?

- A final decision only becomes legally binding on the financial business if the consumer accepts it. To do this, the consumer should sign and date the acceptance card we send with the final decision – and return it to us before the date set out in the decision.
- If the consumer accepts a final decision before the date set out in the decision we will tell the financial business – it will then have to comply promptly with any instructions set out by the ombudsman in the decision.
- If the consumer does not accept a final decision before the date set out in the decision, neither side will be legally bound by it.